

# Ashwani v. DM, Purvanchal Vidyut Vitran Nigam Ltd. and Others

High Court of Judicature at Allahabad · Division Bench · 6 March 2024 · 2024:AHC:40454-DB · WRIT-C No. 6391 of 2024 · **Writ disposed; clause 6.5 objections before respondent no.2; coercive action stayed**

## HEADNOTE

Writ challenging a recovery notice for dues of a commercial connection disposed of without opinion on merits, with liberty to file objections under clause 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within two weeks, to be decided by a speaking order within four weeks, and no coercive action until then.

## FACTUAL SUMMARY

Ashwani filed Writ-C No. 6391 of 2024 in the Allahabad High Court against DM, Purvanchal Vidyut Vitran Nigam Ltd. and two others. He challenged a recovery notice dated 24 January 2024 issued by respondent no. 2 for electricity dues of a commercial connection at his premises, stating that he had been paying the bills regularly and that the notice was illegal. On 27 February 2024 the Division Bench adjourned the petition to 6 March 2024 so counsel for the electricity department could obtain instructions.

## HOLDING-UNITS

### HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Disputed electricity bill relegated to clause 6.5

#### HOLDING

Where a recovery notice for dues of a commercial connection is challenged and the consumer disputes the correctness of the bills, the writ is disposed of without any opinion on merits, with liberty to file objections under clause 6.5 of the Electricity Supply Code, 2005 before respondent no. 2 within two weeks. If such objections are filed, respondent no. 2 shall decide them by a speaking order within four weeks, and no coercive action shall be taken until that decision. If objections are not filed within time, the respondents may proceed in accordance with law. ¶ 3-6

## PRINCIPLE TAGS

**article-226-alternate-remedy-up-supply-code-6.5** The writ against the 24.01.2024 recovery notice was disposed of, without any opinion on merits, leaving the petitioner to file objections under clause 6.5 before respondent no. 2. ¶ 3-5

**clause-6.5-statutory-remedy-disputed-bill** A challenge to the correctness of the commercial-connection bills was treated as a matter for the clause 6.5 remedy rather than merits adjudication in the writ. ¶ 2-4

**para-6.5-objection-before-coercive-recovery** Coercive action was stayed until respondent no. 2 decided objections filed within two weeks; on default in filing them, the respondents could proceed in accordance with law. ¶ 5-6

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 24.01.2024 AND THE UNDERLYING COMMERCIAL-CONNECTION BILLS WERE CORRECT

The Court expressed no opinion on merits and left the dispute to objections under clause 6.5. ¶ 4-5

